

The Gorakhpur Development Authority (Master Plan/Zonal Development Plans) Regulations, 1983

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The Gorakhpur Development Authority (Master Plan/Zonal Development Plans) Regulations, 1983

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The Gorakhpur Development Authority (Master Plan/Zonal Development Plans) Regulations, 1983

Rule

THE-GORAKHPUR-DEVELOPMENT-AUTHORITY-MASTER-PLAN-ZONAL-DEVELOPMENT-PLANS-REGULATIONS-1983 of 1983

Published on 3 April 1984

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The Gorakhpur Development Authority (Master Plan/Zonal Development Plans) Regulations, 1983

Published vide Notification No. 1812/37 - 2-154-D.A.-1980, dated March 31, 1984, published in U.P. Gazette, (Extraordinary), dated 3rd April, 1984, pages 4-5

In exercise of the powers under clause (d) of sub-section (2) of Section 56 of the Uttar Pradesh Urban Planning and Development Act, 1973 (President's Act

No. 11 of 1973

), as re-enacted with modification by the Uttar Pradesh President's Acts (Re-enactment with Modifications) Act, 1974

(U.P. Act No. 30 of 1974), the following regulations are made by the Gorakhpur Development Authority, after the previous approval of the State Government to regulate the procedure for carrying out the functions of the Development Authority in the preparation and amendment of the Master Plan and Zonal Development Plans.

1.

Short title and commencement.

(1)

These regulations may be called the Gorakhpur Development Authority (Master Plan/Zonal Development Plans) Regulations, 1983.

(2)

They shall be applicable to the Gorakhpur Development Area.

(3)

They shall come into force with effect from the date of publication in the Gazette.

2.

Formulation of Development Plans.

- After declaration of the Development Area under Section 3 of the Act, the Development Authority shall collect the necessary datas on the lines mentioned in Appendix I, for preparation of the Master Plan and the Zonal Development Plans.

3.

Preparation of Draft Master Plan.

- As soon as the matters indicated in Regulation 2 are finalised, the Development Authority shall get a draft Master Plan prepared.

4.

Preparation of Zonal Development Plans.

- Simultaneously with the preparation of the draft Master Plan or as soon as may be thereafter, the Development Authority shall get draft Zonal Development Plans prepared incorporating besides other, things, the details given in sub-section (2) of Section 9 of the Act.

5.

Notice.

- After the preparation of the draft Master Plan/Zonal Development Plans, the notice inviting objections against the draft Master Plan/Zonal Development Plans shall be issued in Form 'A' appended to these Regulations which shall specify the place where the said draft plans may be inspected.

6.

Publication of Notice.

- The notice, referred to in Regulation 5, shall be published in at least two local papers and shall also be affixed on the Notice Board of the offices of the Development Authority, the Collector, the District Judge, the District Planning Officer and on other important and conspicuous parts of the Development Area.

7.

A copy of the notice, referred to in Regulation 5, shall also be sent to the President of the Cantonment Board, if any, or any other local authority within whose local limits and the land touched by the Plan is situated with a view to inviting representation with respect to the Master Plan/Zonal Development Plans.

8.

On the date fixed in the notice or on any other adjourned date, the Development Authority shall consider the objections received from any person and the representation if any received from a local authority and may also hear any such person or representative of any local authority and shall, thereafter consider the draft Master Plan/Zonal Development Plans and the objections and suggestions received in respect thereof. The Development Authority may then either reject in the objections and suggestions and the representation of the local authority, or may suggest modifications to be made in the draft Master Plan/Zonal Development Plans and may modify the draft in the light of the objections, representation or otherwise. The draft shall then be final.

9.

Submission of draft to State Government.

- The finalised draft Master Plan/Zonal Development Plans shall thereafter be submitted by, the Development Authority

to the State Government for approval.

10.

Approval of State Government.

- Where any modifications are suggested for approval of the draft Master Plan/Zonal Development Plans or where the draft Master Plan/Zonal Development Plans is rejected by the State Government with directions under sub-section (2) of Section 10 of the Act, the Development Authority shall get the said modifications incorporated or shall get a fresh plan prepared in accordance with such directions, as the case may be, and submit it again for the approval of the State Government.

11.

Notice of approval of draft Master Plan/Zonal Development Plans.

- Notice of approval of draft Master Plan/Zonal Development Plans shall be published in such manner as the State Government may specify and shall also specify the place where a copy of the plan may be inspected.

Appendix

Datas necessary for formulation of Draft Master Plan/Zonal Development Plans

1. Minute details in respect of-

(1)

The boundary of the Development Area;

(2)

Roads, Streets, lanes, water-lines, sewers, railway-lines, etc;

(3)

River, Nalas, etc. flowing through the city;

(4)

Lakes, reservoirs, etc.;

(5)

Offices, Courts, Jails Hospitals, dispensaries, schools, charitable institutions, colleges, University, Medical College, stadium, etc.;

(6)

Colonies and Mohallas, Mohals, Hatas, etc.;

(7)

Theatre, Cinema-halls, places of entertainment;

(8)

Historical Monuments;

(9)

Tourist Places.

2. Arterial streets and transportation lines;

3. Residential sections;

4. Business Areas;

5. Industrial Areas;

6. Public Parks, play-grounds, etc. and other recreational facilities;

7. Public and semi-public buildings;

8. Other land-uses which are necessary.

Form 'A'

[Under Regulation 5]

Notice

No. Dated of the Gorakhpur Development Authority, Gorakhpur

Whereas, the draft Master Plan/Zonal Development Plan of Gorakhpur Development Authority has been prepared and a copy of the same shall be made available for inspection at (mention the place/places) during office hours.

A notice as required under sub-section (1) of Section 11 of the Uttar Pradesh Urban Planning and Development Act, is being published for information of all persons likely to be affected thereby and with a view to inviting objections and suggestions in respect thereof.

All objections and suggestions with regard to the draft Master Plan/Zonal Development Plan should be addressed and sent in writing to the Vice-Chairman, Gorakhpur Development Authority in his office at Gorakhpur. Only those objections and suggestions which are received on or before day from the date of publication of this notice will be taken into consideration on or as soon as possible thereafter by the Development Authority.

Issued under signature and seal of the Vice-Chairman of Gorakhpur Development Authority on this day of 198.....

Vice-Chairman

Gorakhpur Development Authority.

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